Who Do Mom's Papers Name?

A worksheet for writing down who each document names to act for her.

“I think it names me” is a memory. “Power of attorney, dated spring 2014, names Karen, then David” is something an attorney can work from.

Fill this in with the papers in front of you. Copy names and dates the way they are written. Where a paper is unclear, or you haven't found it, write that and leave it.

Don't try to work out what any of it means. Whether a document is valid, or gives enough authority for what lies ahead, is the attorney's question.

The power of attorney for money and property

If you've found one: what it's called on the first page, the date on it, and who it names to act for Mom, first and as a backup. Copy the names as written.

FOR EXAMPLE “Durable Power of Attorney,” dated spring 2014. Names Karen. If Karen can't, names David. Found in the kitchen drawer. It's a photocopy; don't know where the signed one is.

Her healthcare decision-making documents

A healthcare power of attorney, a living will or a similar paper. The same three things: what it's called, the date, and who it names.

FOR EXAMPLE Healthcare power of attorney, same date, names Karen. The rehab has a copy in her chart. Haven't seen a living will.

Any other paper that names someone to act for Mom

A trust: its name, its date, and who it names as trustee and as the next trustee. Or, only if it applies, a paper from a court. If the family has only heard that one exists, write who said so.

FOR EXAMPLE Dad used to mention “the family trust.” Nobody has seen it. Nothing from a court that we know of.

What we've seen of how Mom is managing decisions

Not a judgment. What you've seen and when: what she handles herself, what she asks for help with, what she has said she wants.

FOR EXAMPLE Tuesday: Mom went through her mail with me and told me which bills to pay. Asked me twice what the rehab form was for.

What we couldn't tell, and our questions for the attorney

Anything unclear from reading: two papers that name different people, a missing page, a paper nobody can find. Write each one as a question.

FOR EXAMPLE The paper we found names Karen. David remembers one naming both of them. Is there a later one? Does this one let Karen deal with the house?

Who filled this in, and on which day

What this shows you

Three things: who each paper names, in its own words; which papers you haven't found or couldn't read clearly; and the questions that leaves. It doesn't show who has legal authority to act for Mom, or whether any document is enough for what lies ahead. Nothing here adds up to a score or a result. Rules vary by state, nothing here is legal, financial or tax advice, and those questions go to an elder law attorney.

Ready for the next step?

You've written down who each paper names, and what you couldn't tell from reading them. The planning interview picks up from there: it asks about the rest of your family's situation and gives you a free planning report you can bring, with this worksheet, to an elder law attorney and to your Medicaid planner.

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